

Pursuant to California Code of Civil Procedure section 2030.210: (a) The party to whom interrogatories have been propounded shall respond in writing under oath separately to each interrogatory by any of the following:

- (1) An answer containing the information sought to be discovered.
- (2) An exercise of the party's option to produce writings.
- (3) An objection to the particular interrogatory.

Form Interrogatory No. 12.1:

This request seeks specific information related to witnesses to the “incident.” The court does not disagree with Defendant’s initial objection that the term “incident” in essence is vague and ambiguous in the context of a Song-Beverly Act case. However, counsel for Defendant is well-experienced in these types of cases and seeing that Form Interrogatories are approved by Judicial Council and routinely used in civil discovery, the term “incident” should have meant more to Defendant’s counsel than to litigants not typically involved in these types of action and therefore their objection is without merit. Nonetheless Defendant provided an adequate response to Plaintiff’s request by producing documents.

Form Interrogatories No. 15.1 and 17.1:

Upon review of Defendant’s responses provided for Request Nos. 15.1 (affirmative defenses) and 17.1 (unqualified admissions), the court finds the responses sufficient. Despite providing objections, Defendant also provided responses by producing documents, which they are permitted to do under the code, and in part providing affirmative substantive responses. While Plaintiff may not be satisfied with Defendant’s answers, the responses do not appear to be evasive or a misuse of the discovery process requiring this court’s intervention. However, Defendant is to provide Plaintiff with privilege logs for any requests with asserted privileges or work product protections by January 9, 2026.

Accordingly, Plaintiff’s Motion to Compel Further Responses to Form Interrogatories 12.1, 15.1, and 17.1 is GRANTED in part and DENIED in part. The Motion is granted only to the extent that Defendant is ORDERED to provide Plaintiff with privilege logs for any requests with asserted privileges or work product protections by January 9, 2026. Plaintiff’s Motion to Compel Further Responses to Form Interrogatories 12.1, 15.1, and 17.1 is otherwise denied.

Courtroom Clerk's Session

4. 1:30 PM CASE NUMBER: C24-00266
CASE NAME: SHALINA BOYD, AN INDIVIDUAL VS. BELLA NAIL & SPA
SETTLEMENT CONFERENCE WITH JUDGE MELISSA O'CONNELL IN DEPT 20
FILED BY:
TENTATIVE RULING:

The Parties jointly requested a continuance of the matter to a later date.